

## **ESTATE OF MICHAEL GEORGE**

### **Case Number: 24PB-0032619**

This matter is on calendar for further proceedings on an Amended Final Report and Petition for Final Distribution on Waiver of Account. No Notice of Hearing on Mandatory Judicial Council form DE-120 has been filed with proper proof of service. The Court notes that distribution is being made to a trust, therefore an acknowledged statement by the trustees accepting the property under the terms of the trust must be filed in compliance with Local Rule 15.10(L). The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

## **ESTATE OF ORVILLE GORDON**

### **Case Number: 25PB-0032858**

This matter is on calendar for hearing on an Amended Spousal Property Petition. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that attachments 7a and 7b do not correctly articulate the legal description of the property and how it is affected by this Petition. Items 7a and 7b of the Petition explain how the property should be described. 7a should reflect that the decedent's 50% community property interest in the property is passing to the surviving spouse. 7b should reflect that the surviving spouse's 50% community property interest is confirmed to the surviving spouse. The Petition is **GRANTED**. The proposed order submitted does not correctly reflect the above. A revised proposed order is required that properly reflects what is to be included in Attachment 5a and in attachment 7a. They are two separate and distinct property interests. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for confirmation of receipt and execution of a corrected order. Upon execution of the order, the clerk is directed to close the file. **No appearance is necessary on today's calendar.**

## **ESTATE OF PATRICIA GRIFFIN**

### **Case Number: 25PB-0032902**

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The original will has been lodged. The paperwork appears to be in order, with the exception that no proof of the will has been submitted. If Petitioner is seeking to probate the will as a holographic will, proper Proof of Holographic Instrument (Judicial Council Form DE-135) is required. If Petitioner is seeking to probate the will as a witnessed will, proof of subscribing witness is required. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. **No appearance is necessary on today's calendar.**

## **ESTATE OF MORGAN HARVIN**

### **Case Number: 24PB-0032458**

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. At the last hearing, the clerk was directed to mail a copy of the minutes to the Personal Representative; however, the minutes were sent to an incomplete address. This matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final

Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of November 10, 2025, for Status of Administration. The clerk is directed to mail a copy of today's minutes to the personal representative at the complete address listed in Petitioner's last filing. **No appearance is necessary on today's calendar.**

## **ESTATE OF THOMAS HERRING**

### **Case Number: 24PB-0032434**

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, December 8, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

## **ESTATE OF CAROL HILL**

### **Case Number: 25PB-0032923**

This matter is on calendar for a Petition to Determine Succession to Real Property and personal property. The matter has been properly noticed. The Petition suffers from the following defects:

1. Judicial Council form DE-310 is a mandatory form. This form was updated April 28, 2025, prior to the date of filing.
2. The Court notes the Petition seeks the transfer of personal property. This procedure can no longer be utilized to transfer personal property.
3. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence.
4. Attachment 11 fails to identify decedent's interest in the property.
5. Form DE-300 is not attached as required by item 8.

The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed on the updated form. **No appearance is necessary on today's calendar.**

## **ESTATE OF REX KLEIN**

### **Case Number: 25PB-0032908**

This matter is on calendar for hearing on a Petition for Probate. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that two beneficiaries under the will are minor children and thus will require appointment of a guardian ad litem. The matter is continued to **Monday, June 30, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An application for the appointment of guardian ad litem for both minor beneficiaries must be filed. Notice of Hearing for the continued hearing date will be required to be served on the Guardian Ad Litem. **No appearance is necessary on today's calendar.**

## **ESTATE OF STANLEY LINGENFELTER**

**Case Number: 25PB-0032867**

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed. The Petition indicates that mail was returned as to the surviving spouse and one of the children of decedent (Scotty). No information has been provided regarding efforts to locate the actual address or last known address of Petitioner's brother and mother (or step-mother). Proper proof of publication has been filed. No objections have been raised. Additional information is required regarding efforts to give proper notice to the above individuals. The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. **No appearance is necessary on today's calendar.**

## **ESTATE OF JAMES LOGAN**

**Case Number: 25PB-0032871**

This matter is on calendar for hearing on a Petition for Probate of Lost Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. The Petitioner has established that the original will has been lost; therefore, a photocopy of the will is admitted to probate. A proposed Order was lodged with the Court and will be executed. Bond has been waived and letters shall issue. The court will issue an order **VACATING** the order for probate issued on December 9, 2024, in case 32659, as well as all future dates in that matter. The matter is set for **Monday, October 13, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. The matter is set for **Monday, June 8, 2026, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

## **ESTATE OF BETH MACBETH**

**Case Number: 24PB-0032749**

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal filed on May 28, 2025, is accepted by the Court. The Court notes the future date of February 2, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

## **ESTATE OF DAVID MARTIN, SR.**

**Case Number: 23PB-0031921**

This matter is on calendar for hearing on the Second Amended First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The Inventory and Appraisal filed May 20, 2025, is accepted by the Court. The paperwork appears to be in order and the Petition is **GRANTED**, with the exception that the matter proceeded on a fee waiver, as the petitioner indicated there were no assets to pay the required court fees. As the estate now has assets from which the fees can be paid, the personal representative is ordered to pay \$555 in waived fees to the court. In addition, Petition requests any property of the estate acquired or discovered after the court order for final distribution be distributed to each heir in equal thirds. This request does not take into account the receipt of any future community property. A proposed order has been submitted and will be modified by the Court to reflect the order to pay fees, as well as to reflect that the surviving spouse is to receive 100% of any community property received. This matter is set for **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**